

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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TRUMANE ANTHONY GIBBS,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. NICHOLAS C. ANGELLO, Shield No. 24277 (Tax Id No. 962217), Individually and in his Official Capacity, P.O. ANDREW D. PAULINO, Shield No. 19209 (Tax Id No. 970058), Individually and in his Official Capacity, and POLICE OFFICERS "JOHN DOE" #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown),

Defendants.

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SUMMONS

Jury Trial Demanded

Plaintiff designates Kings County as the place of trial.

The basis of venue is:
CPLR § 504(3)

To the above-named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
April 5, 2024



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TO:

THE CITY OF NEW YORK
c/o SYLVIA HINDS-RADIX
Corporation Counsel of the City of New York
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P.O. NICHOLAS C. ANGELLO, Shield No. 24277 (Tax Id No. 962217)
Patrol Borough Brooklyn North (PBBN), Community Response Team
179 Wilson Ave.
Brooklyn NY, 11237

P.O. ANDREW D. PAULINO, Shield No. 19209 (Tax Id No. 970058)
Patrol Borough Brooklyn North (PBBN), Community Response Team
179 Wilson Ave.
Brooklyn NY, 11237

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

TRUMANE ANTHONY GIBBS,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. NICHOLAS C. ANGELLO, Shield No. 24277 (Tax Id No. 962217), Individually and in his Official Capacity, P.O. ANDREW D. PAULINO, Shield No. 19209 (Tax Id No. 970058), Individually and in his Official Capacity, and POLICE OFFICERS “JOHN DOE” #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown),

Defendants.

VERIFIED COMPLAINT

Jury Trial Demanded

**BASIS FOR VENUE:
CPLR § 504**

PARTIES

1. Plaintiff TRUMANE ANTHONY GIBBS is a black male, a citizen of the United States, and at all relevant times a resident of the County of Kings, City, and State of New York.

2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department (“NYPD”), duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. That at all times hereinafter mentioned, the individually named defendants P.O. NICHOLAS C. ANGELLO, Shield No. 24277 (Tax Id No. 962217)(“defendant ANGELLO”), P.O. ANDREW D. PAULINO, Shield No. 19209 (Tax Id No. 970058) (“defendant PAULINO”), and POLICE OFFICERS “JOHN DOE” #1-10 (“defendants JOHN DOE #1-10”) (the name John Doe being fictitious, as the true names are presently unknown), hereinafter collectively the “NYPD defendants,” were duly sworn police officers of the NYPD and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages, and/or practices of the State or City of New York.

6. Each and every act of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and every act of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

FACTS

8. On or about September 3, 2023, at approximately between 12:00 A.M. and 1:00 A.M., plaintiff was lawfully present as a rear passenger in a motor vehicle, which was traveling in the vicinity of Rogers Ave. and Sullivan Place, Brooklyn, NY.

9. At the aforesaid time and place, plaintiff was not the driver of the vehicle, nor was he committing any crimes or offenses nor was he behaving unlawfully in any way nor was he engaged in an activity that would justify the use of any force, let alone unreasonable and unjustified force.

10. At no time did the NYPD defendants indicate said vehicle wherein plaintiff was a passenger was being pulled over, as the NYPD vehicle that was being operated by the NYPD did not activate its lights or sirens.

11. Nevertheless, at the aforesaid time, place, and location, the NYPD defendants, who were operating an unmarked NYPD vehicle which was owned by defendant THE CITY OF NEW YORK, intentionally, violently, and forcefully crashed said NYPD vehicle into the vehicle wherein plaintiff was a passenger, in an effort to utilize unreasonable, unjustified, and excessive force against plaintiff and the other occupants for the purpose of seizing plaintiff and others therein. Alternatively, the NYPD defendants were negligent and/or reckless in their use and/or operation of said NYPD vehicle causing the aforementioned violent collision.

12. Subsequently, said vehicle wherein plaintiff was a passenger crashed into two (2) additional vehicles as a result of being forcefully struck by said NYPD vehicle being operated by the NYPD defendants.

13. At no time was the force used against plaintiff by the NYPD defendants – to wit, intentionally causing a violent and dangerous car accident for the purpose of seizing plaintiff and others – reasonable nor justified under the circumstances. Alternatively, the NYPD defendants did not exercise a reasonable duty of care in their use and/or operation of said NYPD vehicle causing the aforementioned violent collision.

14. During said use of excessive force (and/or alternatively negligent/reckless conduct) by the NYPD defendants, several parts of plaintiff's body, *inter alia*, plaintiff's right shoulder and right foot came into contact with the inside of the vehicle wherein he was a passenger, causing him pain and physical injuries.

15. Following this violent and unjustified use of force (and/or alternatively negligent/reckless conduct) by the NYPD defendants as described *supra*, plaintiff exited said vehicle as he was injured.

16. Plaintiff did not attempt to flee the scene.

17. Thereafter, plaintiff noticed the NYPD defendants and placed his hands on his to indicate he was not a threat.

18. Nevertheless, and despite the fact plaintiff was unarmed, was not a threat, and did not possess any contraband whatsoever, without warning or justification, plaintiff was accosted, seized, and assaulted by said NYPD defendants.

19. Specifically, defendant PAULINO and/or the other NYPD defendants grabbed plaintiff by his sweater and then violently punched plaintiff approximately four (4) to five (5) times, subjecting him to further injuries without justification to wit, *inter alia*, bruising, swelling, and pain to his face.

20. Subsequently, the NYPD defendants placed plaintiff under arrest by tightly handcuffing his arms behind his back, causing plaintiff further pain and injuries to his wrists.

21. In addition, plaintiff was searched by the NYPD defendants, however, no contraband was recovered as a result of this search nor did plaintiff possess or have custody or control over any contraband.

22. At no time was the force used against plaintiff by the NYPD defendants reasonable and/or justified under the circumstances as plaintiff was unarmed, not a threat, and did not possess any contraband.

23. At no time on September 3, 2023, did the NYPD defendants possess probable cause to search plaintiff.

24. At no time on September 3, 2023, did the NYPD defendants possess probable cause to arrest plaintiff.

25. At no time on September 3, 2023, did the NYPD defendants possess information that would lead a reasonable officer to believe probable cause existed to search plaintiff.

26. At no time on September 3, 2023, did the NYPD defendants possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

27. Subsequently, the NYPD defendants transported plaintiff to a nearby NYPD precinct.

28. Upon arrival at said precinct, plaintiff was searched. However, no contraband was found on plaintiff's person and/or effects as a result of this or any searches, nor did plaintiff possess or have custody or control over any contraband.

29. Plaintiff remained detained at said precinct for several hours, during which time he was photographed, fingerprinted, and charged by the NYPD defendants with obstructing governmental administration.

30. While detained at the precinct, plaintiff requested medical attention from the NYPD defendants but none was provided.

31. Thereafter, plaintiff was transported to Central Booking. Upon arrival at Central Booking, plaintiff was searched again and further detained. In addition, while at Central Booking, plaintiff continued to request medical attention.

32. Eventually, plaintiff was transported by NYPD officers and/or the NYPD defendants from Central Booking to a nearby hospital where he was provided medical attention.

33. While plaintiff was at the hospital, he remained handcuffed to the hospital gurney and under police custody, despite the fact he was not a threat and posed no risk of flight or harm to NYPD officers, the NYPD defendants, or anyone else.

34. Upon plaintiff's discharge from the hospital, plaintiff was placed in a police vehicle and transported back to Central Booking where he was further detained until he was before he was eventually released following his arraignment.

35. In connection with plaintiffs' arrest, upon information and belief, the NYPD defendants filled out false and/or misleading police reports (and/or otherwise provided false information concerning the herein-mentioned events) and forwarded them to prosecutors at the Kings County District Attorney's Office.

36. Thereafter, the NYPD defendants repeated the aforementioned false and misleading information regarding the facts and circumstances of plaintiff's arrest.

37. Specifically, the NYPD defendants falsely stated, *inter alia*, that plaintiff had proceeded to leave the scene of the above-referenced collision on foot after the NYPD defendants identified themselves as police officers and advised plaintiff to "stop" because they were investigating a car crash.

38. As a result of the foregoing, plaintiff was detained for approximately two (2) days and was maliciously prosecuted, was denied the right to a fair trial based on said officers' fabrications, and was forced to make several court appearances to fight the aforementioned false allegations against him.

39. On or about December 5, 2023, all charges against plaintiff were dismissed in their entirety.

40. In addition, as a result of the foregoing, plaintiff suffered physical injuries, including, but not limited to, his right shoulder, right foot, face, head, and upper body, which required immediate medical attention and physical therapy, swelling, pain, bruises, numbness, and/or other injuries as more fully documented in his medical records, and emotional distress.

41. As a result of the foregoing, plaintiff sustained, *inter alia*, physical injuries, loss of liberty, economic damages, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

FIRST CLAIM FOR RELIEF
DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

42. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

43. All of the aforementioned acts of defendants, their agents, servants, and employees, were carried out under the color of state law.

44. All of the aforementioned acts deprived plaintiff of the rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth, Fifth, Eighth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

45. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and/or correctional officers, with all the actual and/or apparent authority attendant thereto.

46. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and corrections officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police

Department, and the New York City Department of Corrections, all under the supervision of ranking officers of said departments.

47. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983

48. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the previous paragraphs with the same force and effect as if fully set forth herein.

49. The level of force employed by the NYPD defendants was objectively unreasonable and in violation of the constitutional rights of the plaintiff.

50. As a result of the foregoing, plaintiff sustained serious bodily injuries as set forth *supra*.

THIRD CLAIM FOR RELIEF ARISING
FALSE ARREST UNDER 42 U.S.C. § 1983

51. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the previous paragraphs with the same force and effect as if fully set forth herein.

52. As a result of the aforesaid conduct by the NYPD defendants, plaintiff was subjected to an illegal, improper, and false arrest by the NYPD defendants, taken into custody, and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

53. As a result of the foregoing, plaintiff's liberties were restricted for an extended period of time, he was put in fear for his safety, and he was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

**FOURTH CLAIM FOR RELIEF ARISING
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983**

54. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the previous paragraphs with the same force and effect as if fully set forth herein.

55. The NYPD defendants created false evidence against the plaintiff.

56. The NYPD defendants forwarded false evidence and false information to prosecutors in the Kings County District Attorney's Office as described in the proceeding paragraphs.

57. The NYPD defendants misled the prosecutors by creating false evidence against the plaintiff and thereafter providing the aforementioned false statements throughout the criminal proceedings.

58. In creating false evidence against the plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, the NYPD defendants violated plaintiff's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

59. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, he suffered economic damages, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

**FIFTH CLAIM FOR RELIEF
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

60. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the previous paragraphs with the same force and effect as if fully set forth herein.

61. The NYPD defendants misrepresented and falsified evidence before the Queens County District Attorney.

62. The NYPD defendants did not make a complete and full statement of facts to the District Attorney.

63. The NYPD defendants withheld exculpatory evidence from the District Attorney.

64. The NYPD defendants were directly and actively involved in the initiation of criminal proceedings against plaintiff.

65. The NYPD defendants lacked probable cause to initiate criminal proceedings against plaintiff.

66. The NYPD defendants acted with malice in initiating criminal proceedings against plaintiff.

67. The NYPD defendants were directly and actively involved in the continuation of criminal proceedings against plaintiff.

68. The NYPD defendants lacked probable cause to continue criminal proceedings against plaintiff.

69. The NYPD defendants acted with malice in continuing criminal proceedings against plaintiff.

70. The NYPD defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.

71. Specifically, the NYPD defendants made the aforementioned false and misleading allegations regarding the circumstances surrounding plaintiff's arrest.

72. Notwithstanding the perjurious and fraudulent conduct of the NYPD defendants, the criminal proceedings were terminated in plaintiff's favor on or about December 5, 2023.

73. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, he suffered economic damages, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

SIXTH CLAIM FOR RELIEF
FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983

74. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

75. The NYPD defendants had an affirmative duty, and the opportunity to intercede when plaintiff's constitutional rights were being violated in the NYPD defendants' presence by the use of excessive force and by fabrication of evidence.

76. The NYPD defendants further violated plaintiff's constitutional rights when they failed to intercede and prevent the violation or further violation of plaintiff's constitutional rights and the injuries or further injuries caused as a result of said failure.

77. As a result of the NYPD defendants' failure to intercede when plaintiff's constitutional rights were being violated in their presence, plaintiff sustained, *inter alia*, physical injuries, loss of liberty, economic damages, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of constitutional rights.

SEVENTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

78. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

79. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

80. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York, the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
- ii. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- iii. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
- iv. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and,
- v. handcuffing all hospitalized arrestees/prisoners for the entirety of their hospitalization regardless of their risk of flight or safety risk to others; and,
- vi. utilizing excessive force in effectuating arrests when there is no excuse or justification for any such force; and,
- vii. failing to intercede to prevent violations of plaintiff's constitutional rights; and,
- viii. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, use excessive force, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.

81. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York, the New York City Police Department constituted deliberate indifference to the safety, well-being, and constitutional rights of the plaintiff.

82. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York, the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiff as alleged herein.

83. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York, the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiff as alleged herein.

84. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiffs' constitutional rights.

85. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiffs' constitutional rights.

86. The acts complained of deprived the plaintiff of his rights:

- i. To be free from cruel and unusual punishments;
- ii. To receive timely and adequate medical care;
- iii. To be provided with appropriate safety while in custody;
- iv. Not to have summary punishment imposed upon him; and
- v. To receive equal protection under the law.

PENDANT STATE CLAIMS

87. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

88. On or about October 10, 2023, within (90) days after the claim(s) herein accrued, the plaintiff duly served upon, presented to, and filed with defendant THE CITY OF NEW

YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law § 50 (e).

89. Thereafter, on or about February 27, 2024, within (90) days after any additional claim(s) herein accrued, the plaintiff duly served upon, presented to, and filed with defendant THE CITY OF NEW YORK, an Amended Notice of Claim setting forth all additional facts and information required under the General Municipal Law § 50 (e).

90. Defendant THE CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

91. Defendant THE CITY OF NEW YORK demanded a hearing pursuant to General Municipal Law § 50-h and said hearing was held on or about February 12, 2024.

92. This action was commenced within one (1) year and ninety (90) days after the cause of action herein accrued.

93. Plaintiff has complied with all conditions precedent to maintaining the instant action.

94. This action falls within one or more of the exceptions as outlined in C.P.L.R. § 1602.

**FIRST CLAIM FOR RELIEF UNDER N.Y. STATE LAW
FALSE ARREST/IMPRISONMENT**

95. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

96. The NYPD defendants arrested plaintiff in the absence of probable cause and without a warrant.

97. As a result of the foregoing, plaintiff was falsely imprisoned, his liberty was restricted for an extended period of time, he was put in fear for his safety, and humiliated and subjected to handcuffing and other physical restraints.

98. Plaintiff was conscious of said confinement and did not consent to the same.

99. The confinement of plaintiff was without probable cause and was not otherwise privileged.

100. As a result of the aforesaid conduct by the NYPD defendants, plaintiff was subjected to an illegal, improper, and false arrest by the defendants and taken into custody, and caused to be falsely imprisoned, detained, confined, incarcerated, and prosecuted by the defendants in criminal proceedings. The aforesaid actions by the NYPD defendants constituted a deprivation of plaintiff's rights.

101. As a result of the aforementioned conduct, plaintiff has suffered physical and mental injury, together with embarrassment, humiliation, shock, fright, and loss of freedom.

SECOND CLAIM FOR RELIEF UNDER N.Y. STATE LAW
MALICIOUS PROSECUTION

102. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

103. The NYPD defendants misrepresented and falsified and/or omitted evidence before the Kings County District Attorney.

104. The NYPD defendants did not make a complete and full statement of facts to the District Attorney.

105. The NYPD defendants withheld exculpatory evidence from the District Attorney.

106. The NYPD defendants were directly and actively involved in the initiation of criminal proceedings against plaintiff.

107. The NYPD defendants lacked probable cause to initiate criminal proceedings against plaintiff.

108. The NYPD defendants acted with malice in initiating criminal proceedings against plaintiff.

109. The NYPD defendants were directly and actively involved in the continuation of criminal proceedings against plaintiff.

110. The NYPD defendants lacked probable cause to continue criminal proceedings against plaintiff.

111. The NYPD defendants acted with malice in continuing criminal proceedings against plaintiff.

112. The NYPD defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.

113. The NYPD defendants made the specific false statements described in the proceeding paragraphs.

114. Notwithstanding the perjurious and fraudulent conduct of the NYPD defendants, the criminal proceeding against plaintiff was dismissed in its entirety on or about December 5, 2023.

115. As a result of this prosecution, plaintiff spent approximately two (2) days in custody and had to make multiple court appearances before the charges against him were dismissed.

116. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, he lost wages, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

THIRD CLAIM FOR RELIEF UNDER N.Y. STATE LAW
ASSAULT

117. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

118. The NYPD defendants' aforementioned actions placed plaintiff in apprehension of imminent harmful and offensive bodily contact.

119. As a result of defendants' conduct, plaintiff has suffered physical injuries and pain, mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

FOURTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
BATTERY

120. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

121. The NYPD defendants touched plaintiff in a harmful and offensive manner.

122. The NYPD defendants did so without privilege or consent from plaintiff.

123. As a result of defendants' conduct, plaintiff has suffered physical injuries and pain, mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

FIFTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
NEGLIGENCE/RECKLESSNESS

124. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

125. The vehicle in which the plaintiff was a passenger was struck by an NYPD vehicle owned and maintained by defendant THE CITY OF NEW YORK and used and/or operated by the NYPD defendants, causing it to crash into two (2) additional vehicles.

126. As a result, plaintiff was caused to sustain severe and serious personal injuries due to the negligence, recklessness, carelessness and reckless disregard of defendant THE CITY OF NEW YORK and the NYPD defendants, together with their agents, servants and employees in the ownership, operation, control, management and maintenance of the aforementioned motor vehicle that they jointly and individually failed to keep their attention before themselves in the instance; failed to exercise due care in the operation of vehicles under their control; failed to look, failed to see what there was to be seen; failed to steer the vehicles under their control to avoid the occurrence; failed to apply the brakes in the timely and proper manner; failed to instruct drivers of their vehicles; failed to supervise drivers of their vehicles; failed to sound a horn to warn of the impending occurrence; failed to account for road conditions; failed to avoid striking plaintiff; failed to keep proper distance; failed to flash lights to warn of the impending occurrence; failed to use lights and sirens; failed to follow proper police department procedures, rules, and/or guidelines; failed to obey the necessary vehicle and traffic laws; failed to use hand signals to warn of the dangers presented by their action and the impending occurrence; failed to heed the laws, statutes, and/or ordinances in effect at the time and place of the occurrence of which the plaintiff will ask that the court take judicial notice at the trial of this action, including, but not limited to those listed on the police report; failed to entrust their vehicles to those of suitable age and experience; failed to properly train their drivers; failed to investigate the driving history of their drivers; failed to properly inspect their vehicles; failed to repair their vehicles; failed to properly maintain their vehicles; failed to stop their vehicles in time to avoid the

occurrence; failed to operate their vehicles at an appropriate speed under the circumstances and conditions then and the existing; failed to heed the traffic conditions then and there existing; failed to respect plaintiff's right of way; failed to slow their vehicles; failed to drive with due diligence; failed to hire competent officers; failed to keep considerations of safety above their own convenience; acted with reckless disregard for the safety of the public.

127. The foregoing incident and the resulting injuries to plaintiff's person were caused solely and as a direct and proximate cause of the carelessness, negligence, and/or recklessness on the part of defendant THE CITY OF NEW YORK and/or the NYPD defendants, their servants, agents, employees and/or licensees and without any negligence on the part of the plaintiff contributing thereto, in that defendants had a duty to plaintiff, breached said duty, and in doing so caused plaintiff injuries.

128. As a result of the foregoing, plaintiff sustained, *inter alia*, physical injuries, pain, economic damages, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, and humiliation.

SIXTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
DENIAL OR DELAY OF MEDICAL CARE

129. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

130. The NYPD defendants denied plaintiff reasonable, good-faith medical attention while he was in the custody of the City of New York.

131. As a result, plaintiff suffered further injuries and/or pain.

132. The NYPD defendants' conduct violated New York State Civil Rights Law § 28.

SEVENTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

133. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

134. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

135. The aforementioned conduct was committed by the NYPD defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

136. The aforementioned conduct was committed by the NYPD defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

137. The aforementioned conduct was intentional and done for the sole purpose of causing severe emotional distress to plaintiff.

138. As a result of the aforementioned conduct, plaintiff suffered severe emotional distress, and physical and mental injuries, together with embarrassment, humiliation, shock, and fright.

EIGHTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

139. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

140. Defendant THE CITY OF NEW YORK and/or the NYPD defendants owed a duty to plaintiff.

330. Defendants breached that duty by failing to protect him and endangering his physical safety.

331. The aforementioned conduct was extreme and outrageous and exceeded all reasonable bounds of decency.

332. Defendants' breach was the direct and/or proximate cause of plaintiff's injuries.

333. As a result of the aforementioned conduct, plaintiff suffered severe emotional distress, and physical/mental injury, together with embarrassment, humiliation, shock, and fright.

NINTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION

141. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

142. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned, and supervised all members of its Police Department and Department of Corrections, including the defendants individually named above.

143. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department and Department of Corrections including the defendants individually named above.

144. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned, and supervised all members of its Police Department and Department of Corrections, including the defendants individually named above.

145. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department and Department of Corrections including the defendants individually named above.

146. Due to the actions and/or negligence of the defendants as set forth above, plaintiff suffered physical injury, pain, and trauma.

147. As a result of the foregoing, plaintiff is entitled to compensatory damages and is further entitled to punitive damages against the individual defendants.

PENDANT CITY LAW CLAIMS PURSUANT TO 2021 N.Y.C. LOCAL LAW NO. 48
N.Y.C. ADMIN. CODE §§ 8-802, ET SEQ.

FIRST CLAIM FOR RELIEF UNDER N.Y.C. LAW
VIOLATION OF AC-8-802 RIGHTS – UNREASONABLE SEARCH & SEIZURE

148. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

149. The acts of the NYPD defendants constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

150. The acts of the NYPD defendants caused plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8-802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures.

151. The NYPD defendants, while acting in the scope of their employment for THE CITY OF NEW YORK as police officers, unlawfully seized, frisked, and searched the plaintiff, before detaining plaintiff and further causing his detention for approximately two (2) days in total.

152. By reason of the acts and omissions by the NYPD defendants as described above, plaintiff has endured *inter alia*, loss of liberty, physical injuries, economic damages, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, and was otherwise damaged and/or injured.

**SECOND CLAIM FOR RELIEF UNDER N.Y.C. LAW
VIOLATION OF AC-8-802 RIGHTS – EXCESSIVE FORCE**

153. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

154. The acts of the NYPD defendants constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

155. The acts of the NYPD defendants caused plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8-802, to wit: to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

156. That the NYPD defendants, while acting in the scope of their employment for THE CITY OF NEW YORK as police officers, unlawfully used excessive force against plaintiff causing physical injuries.

157. As a direct and proximate result of the foregoing conduct of the defendants as set forth above, plaintiff, sustained, *inter alia*, physical injuries, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of constitutional rights.

**THIRD CLAIM FOR RELIEF UNDER N.Y.C. LAW
VIOLATION OF AC-8-802 RIGHTS – FAILURE TO INTERVENE**

158. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

159. The acts of the NYPD defendants constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

160. The NYPD defendants had a duty to protect plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8-802, to wit: to be secure in his

person, house, papers, and effects against unreasonable searches and seizures and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

161. The defendants that did not engage in the unreasonable search and seizure of plaintiff and/or the excessive force against plaintiff as outlined above, but were present when other officers violated those rights of plaintiff, had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

162. The NYPD defendants failed to intervene to prevent the unlawful conduct described herein, thereby failing in their duty to intervene to protect plaintiff from a violation of his rights.

163. As a direct and proximate result of the foregoing conduct of the defendants as set forth above, plaintiff, sustained, *inter alia*, loss of liberty, physical injuries, economic damages, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of constitutional rights.

FOURTH CLAIM FOR RELIEF UNDER N.Y.C. LAW
VIOLATION OF AC-8-802 RIGHTS – CITY LIABILITY UNREASONABLE
SEARCH/SEIZURE AND EXCESSIVE FORCE

164. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

165. The NYPD defendants are “covered individuals” as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8-801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as Special Patrolmen.

166. Defendant THE CITY OF NEW YORK as the employer of the covered individual the NYPD defendants is liable to the plaintiff for the wrongdoing of the covered individual the NYPD defendants.

167. The acts of the NYPD defendants constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

168. The acts of the NYPD defendants caused plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8-802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

169. That the NYPD defendants, while acting in the scope of their employment for THE CITY OF NEW YORK as police officers, unlawfully searched/seized plaintiff and used excessive force against plaintiff.

170. As a direct and proximate result of the foregoing conduct of the defendants as set forth above, plaintiff, sustained, *inter alia*, loss of liberty, physical injuries, economic damages, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of constitutional rights.

FIFTH CLAIM FOR RELIEF UNDER N.Y.C. LAW
VIOLATION OF AC-8-802 RIGHTS – CITY LIABILITY FAILURE TO INTERVENE

171. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

172. The NYPD defendants are “covered individuals” as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8-801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolmen.

173. Defendant THE CITY OF NEW YORK as the employer of the covered individual the NYPD defendants is liable to the plaintiff for the wrongdoing of the covered individual the NYPD defendants.

174. The acts of the NYPD defendants constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

175. The NYPD defendants had a duty to protect plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8-802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

176. The defendants that did not engage in the unreasonable search and seizure of plaintiff and/or the excessive force against plaintiff as outlined above, but were present when other officers violated those rights of plaintiff, had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

177. The NYPD defendants failed to intervene to prevent the unlawful conduct described herein, thereby failing in their duty to intervene to protect plaintiff from a violation of his rights.

178. As a direct and proximate result of the foregoing conduct of the defendants as set forth above, plaintiff, sustained, *inter alia*, loss of liberty, physical injuries, economic damages,

emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of constitutional rights.

WHEREFORE, plaintiff respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs, and disbursements of this action.

Dated: New York, New York
April 5, 2024

BY: 
Ilyssa S. Fuchs, Esq.
Cohen & Fitch LLP
233 Broadway, Suite 900
New York, New York 10279
(212) 374-9115

ATTORNEY'S VERIFICATION

ILYSSA S. FUCHS, an attorney duly admitted to practice law in the Courts of the State of New York, states:

That she is a member of the law firm of COHEN & FITCH, LLP the attorneys for the plaintiff TRUMANE ANTHONY GIBBS in the within-entitled action.

That your deponent has read the foregoing **COMPLAINT** and knows the contents thereof, and that the same is true to her own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, she believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the plaintiff is that the plaintiff is not within the county wherein deponent maintains her office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
April 5, 2024



ILYSSA S. FUCHS